

24STCV22877 24STCV22877

County: los-angeles

Division: Civil Law and Motion

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SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

24STCV22877

CARLOTA

VELASQUEZ, et al. vs YAYA GROUP IX LLC, A LIMITED LIABILITY COMPANY, et al.

July

17, 2026

8:30

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NATURE OF PROCEEDINGS:

PETITIONERS' PETITIONS FOR APPROVAL OF COMPROMISE OF CLAIM OR ACTION OR
DISPOSITION OF PROCEEDS OF JUDGMENT FOR MINOR....

RULING:

The Court grants both
Petitions.

Petitioner to give
notice.

I.

BACKGROUND

On September 5, 2024,
Plaintiffs filed a habitability Complaint against Defendants, listing Causes of
Action for:

1)

BREACH OF IMPLIED WARRANTY OF HABITABILITY

2)

BREACH OF STATUTORY WARRANTY OF HABITABILITY

3)

BREACH OF THE COVENANT OF QUIET ENJOYMENT

4)

NEGLIGENCE

5)

VIOLATION OF CIVIL CODE SECTION 1942.4

6)

PRIVATE NUISANCE

7)

VIOLATION OF TENANT ANTI-HARASSMENT ORDINANCE

8)

VIOLATION OF UNFAIR COMPETITION LAW (BUS. & PROF. C. §§ 17200-09).

Plaintiffs allege that managers
and owners of apartments at 8435 Orion Ave, North Hills, CA, are liable for

issues regarding, “habitability by failing to correct the substandard conditions, which include but are not limited to, garbage disposal deficiencies; electrical deficiencies; plumbing deficiencies; lack of hot water; water leaks; water damaged ceilings, floors and walls containing mold and mildew; rodent infestations; insect infestations; pest infestations; security and safety deficiencies; storage deficiencies; refuse disposal deficiencies; and loss of use of the premises for various periods of times.” (Complaint, ¶ 8.)

On June 11, 2026, Plaintiffs filed two documents of the form, “PETITION FOR APPROVAL OF COMPROMISE OF CLAIM OR ACTION OR DISPOSITION OF PROCEEDS OF JUDGMENT FOR MINOR....”

II.

LEGAL STANDARD

Petitions for approval of minors' compromises shall fully disclose all information that has any bearing on the compromises' reasonableness. (*Chui v. Chui* (2022) 75 Cal.App.5th 873, 899 [citing Cal. Rules of Court, rule 7.950].)

A petition for court

approval of a compromise under Code of Civil Procedure section 372 must comply with California Rules of Court rules 7.950, 7.951, and 7.952. (See Cal. Rules of Court, rule 3.1384(a).) Some of the Probate Code and the Code of Civil Procedure apply to compromises as to minors' claims. (See Cal. Rules of Court, rule 7.950.) In large part, the Local Rules incorporate by reference the California Rules of Court and statutory provisions. (See Super. Ct. LA County, Local Rules, rule 4.115 et seq.)

III.

ANALYSIS

The minors are Roman

Larios (age 9) and Carlota Velasquez (age 10). Reportedly the minors recovered completely. (Petitions, ¶ 8(a).) They suffered from bedbug bites, sleeplessness, and allergies including running nose and coughs, and did not have medical treatment. (*Ibid.* ¶ 6-7.) The settlement amounts of \$10,000.00 to each would be reduced by case costs (\$152.42) and attorney fees at 25% (\$2,461.89) leaving a balance of \$7,385.68, which would be deposited in a

blocked account with JP Morgan Chase Bank. The total gross settlement amount is \$360,000.00.

Most importantly, courts must decide whether to approve a compromise by determining if petitioners, such as guardians, are acting in the best interests of minors or incompetent persons. (E.g., CCP §372(a); *Scruton v. Korean Air Lines Co.* (1995) 39 Cal.App.4th 1596, 1603-07.) "[T]he protective role the court generally assumes in cases involving minors, [is] a role to assure that whatever is done is in the minor's best interests.... [I]ts primary concern is whether the compromise is sufficient to provide for the minor's injuries, care and treatment." (*Goldberg v. Sup. Ct.* (1994) 23 Cal.App.4th 1378, 1382.) Judicial discretion in approving petitions for minors' compromises, and ordering distributions, and local court policies, must be applied in the best interests of minors, in a case-by-case method, tailored to the circumstances. (*Christensen v. Sup. Ct.* (1987) 193 Cal.App.3d 139, 142-44.)

The Court finds that the minors' compromises are in the best interests of minors, including because their monetary recoveries would be in the "ballpark" of settlements that the Court has ruled upon in like habitability cases where minors recovered from uninhabitable conditions without needing medical treatment.

IV.

CONCLUSION

The Court grants both Petitions.